

25CHCV00932 25CHCV00932

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-09

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Case Number: 25CHCV00932 Hearing Date: September 9, 2026 Dept: F46

Dept. F-46

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DEFENDANT ERIC

NGUYEN'S DEMURRER TO COMPLAINT

Motion filed on December 3, 2025.

MOVING PARTY: Defendant Eric Nguyen

RESPONDING PARTY: Plaintiffs Leonel Razo and Esmeralda Leon

NOTICE: OK.

RELIEF REQUESTED: Defendant Eric Nguyen seeks an order sustaining the Demurrer to the fourth cause of action for fraud without leave to amend.

RULING: Continued to October 9, 2026, at 8:30 a.m. in Department F-46.

BACKGROUND/DISCUSSION

On March 17, 2025, Plaintiffs Leonel Razo and Esmeralda Leon (Plaintiffs) filed the Complaint against Defendant Eric Nguyen (Defendant),

alleging causes of action for cancellation of deed, cancellation of deed of trust, quiet title, fraud, and adverse possession. On December 3, 2025, Defendant filed the instant Demurrer to the fourth cause of action for fraud. On March 23, 2026, Plaintiffs filed an opposition. On September 1, 2026, Defendant filed a reply.

Pursuant to Code of Civil Procedure section 430.41, subdivision (a), "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The demurring party must also "file and serve with the demurrer a declaration" stating either the means by which the parties met and conferred and that no agreement was reached, or that the opposing party failed to respond to the meet-and-confer request or otherwise failed to meet and confer in good faith. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Here, Defendant's demurrer is not accompanied by any meet-and-confer declaration required by section 430.41, subdivision (a)(3). The moving papers do not otherwise demonstrate compliance with the meet-and-confer requirement of section 430.41, subdivision (a). The Court therefore continues the hearing without reaching the merits.

CONCLUSION

The hearing on Defendant Eric Nguyen's Demurrer is continued to October 9, 2026, at 8:30 a.m. in Department F-46.

Defendant is ordered to meet and confer with Plaintiffs within 10 days of the date of this order. If the parties are unable to resolve the pleading issues or if the parties are otherwise unable to meet and confer in good faith, Defendant is to thereafter file and serve a declaration setting forth the efforts to meet and confer in compliance with Code of Civil Procedure section 430.41, subdivision (a)(3) within 15 days of this order.